



THE KENYA GAZETTE

Published by Authority of the Republic of Kenya

(Registered as a Newspaper at the G.P.O.)

Vol. CXIV—No. 72

NAIROBI, 27th July, 2012

Price Sh. 50

GAZETTE NOTICE No. 10604

**COMMITTEE ON PREPARATION OF REGULATIONS AS
REQUIRED BY THE LAND ACT, 2012**

AND

THE LAND REGISTRATION ACT, 2012

APPOINTMENT

FOLLOWING the successful enactment of the Land Act, 2012 and Land Registration Act, 2012 by Parliament, section 160 (1) of the Land Act and sections 108 and 110 of the Land Registration Act requires that regulations for the better carrying into effect the purpose and the provisions of the Acts be made.

It is notified for the general information of the public that the Minister for Lands has appointed a Committee consisting of the following:

Chairman: to be appointed by the National Land Commission
Cyrus Ngatia—(*Vice-Chairman*)

Members:

Roselyn Aburili, Ministry of Justice, National Cohesion and Constitutional Affairs
Peter Musyimi, Kenya Law Reform Commission
Catherine Ochanda, State Law Office
Grace W. Mwailema, Land Sector Non State Actors
Alfred Mwangi, Institution of Surveyors of Kenya
Peter Mwangi Muhiu, Law Society of Kenya
Isaac Karanja Mwangi (Dr.), Kenya Institute of Planners
Reuben Murugu, Ministry of Lands, Department of Survey
Polly Gitimu, Ministry of Lands, Department of Survey
Timothy Mwangi, Ministry of Lands, Department of Physical Planning
Lilian Kieni, Ministry of Lands, Department of Physical Planning
Elizabeth Gicheha, Ministry of Lands, Department of Lands
Sarah Maina, Ministry of Lands, Department of Lands
Joseph Kariuki, Ministry of Lands, Department of Lands
Susan Kidemi, Ministry of Lands, Department of Land Adjudication and Settlement
Peter Waithaka, Ministry of Lands, Department of Land Adjudication and Settlement
Francis Bor, Ministry of Lands, Land Reform Transformation Unit
Representatives of the National Land Commission (2 No.)

The Task Force may co-opt professional and any appropriate competence within or outside Government. The Task Force may be reconstituted after the appointment of the National Land Commission.

Terms of Reference for Task Force:

1. Prepare regulations, rules and guidelines as per provisions of the Constitution, Land Registration Act, 2012 and Land Act, 2012.
2. Prepare draft subsidiary legislations.
3. Identify inconsistencies in the Land Registration Act, 2012 and Land Act, 2012 and propose amendments.

In the performance of their tasks, the Committee shall:

1. Prepare detailed Work Plan indicating the milestones and timelines.
2. Review any documents relevant to mandate.
3. Hold Consultative Forums with professionals, land sector stakeholders and the public.

Reporting:

1. The Committee shall report to the Minister for Lands; and
2. Shall regularly advise and keep the Minister apprised on progress. Without prejudice to the generality of the foregoing, it shall make monthly progress reports to the Minister.

Mode of operation:

In the performance of the duties, the Committee shall regulate its procedure.

Quorum:

The quorum of any meeting for purpose of conducting any business other than to appoint a temporary chairman shall be five excluding the chairman.

Duration:

1. The Committee shall finalize its task within a period of six months with effect from the date of gazettelement.
2. Any of the members other than the public officers may resign by writing to the Minister to that effect and such resignation, shall take effect upon such letter of resignation being received by the Minister.

Costs:

The costs incurred by the Committee, including but not restricted to facilitation and the payment of allowance in respect of the members and the secretariat of the Committee, shall be defrayed from voted funds of the Ministry.

Dated the 19th July, 2012.

JAMES ORENGO,
Minister for Lands.

GAZETTE NOTICE No. 10605

THE CONSTITUTION OF KENYA

THE NATIONAL ASSEMBLY AND PRESIDENTIAL
ELECTIONS ACT

(Cap. 7)

THE PRESIDENTIAL AND PARLIAMENTARY ELECTIONS
REGULATIONS

ELECTION OF MEMBER OF PARLIAMENT

IN EXERCISE of powers conferred by section 2 (1) (a), 3 (2) of the Sixth Schedule to the Constitution of Kenya, section 41A of the former Constitution of Kenya, section 13 of the National Assembly and Presidential Elections Act, regulations 8 (3) and 14 of the Presidential and Parliamentary Elections Regulations and section 112 (2) of the Elections Act, 2011, the Independent Electoral and Boundaries Commission gives notice that:

- (a) An election is to be held of members to serve in the National Assembly for Kangema, Kajiado North and Ndhiwa Constituencies.
- (b) Each political party wishing to participate in the by-elections must finalize the nominations of its candidate on or before the 15th August, 2012.
- (c) The days for the nomination of the candidates for the parliamentary by-elections will be on 22nd August, 2012 and 23rd August, 2012, and nomination papers may be delivered by candidates to the Returning Officers of the said constituencies between the hours of eight o'clock in the morning and one o'clock in the afternoon and between the hours of two o'clock and four o'clock in the afternoon of the days.
- (d) If the parliamentary elections are contested, the poll will take place on the 17th September, 2012.

NOTES:

1. The attention of candidates and persons subscribing nomination papers is drawn to the provision of Part IV of the Presidential and Parliamentary Elections Regulations (Cap.7. Sub. Leg.)

2. A person guilty of an election offence will be liable to the penalties imposed by the Election Offences Act (Cap. 66) and to the disqualifications imposed by the National Assembly and Presidential Elections Act (Cap. 7).

Dated the 25th July, 2012.

A. I. HASSAN,
*Chairperson,
Independent Electoral and Boundaries Commission.*

GAZETTE NOTICE No. 10606

THE CONSTITUTION OF KENYA

THE NATIONAL ASSEMBLY AND PRESIDENTIAL
ELECTIONS ACT

(Cap. 7)

THE PRESIDENTIAL AND PARLIAMENTARY ELECTIONS
REGULATIONS

APPOINTMENT OF RETURNING OFFICERS—KANGEMA, KAJIADO NORTH
AND NDHIWA BY-ELECTIONS

IN EXERCISE of the powers conferred by section 2 (1) (a), 3 (2) of the Sixth Schedule to the Constitution of Kenya, section 112 (2) of the Elections Act, 2011, section 3 of the National Assembly and Presidential Elections Act and regulation 3 (1) of the Presidential and Parliamentary Elections Regulations, the Independent Electoral and Boundaries Commission appoints the persons specified in the second column to be Returning Officers and Deputy Returning Officers for the constituencies specified in the first column of the schedule.

<i>Constituency</i>	<i>Name of Returning Officer</i>
Kangema	Benson Muchoki Njau
	<i>Name of Deputy Returning Officer</i> Margaret Wanjiru Wanjiku
Kajiado North	<i>Name of Returning Officer</i> Naisiae Tobiko Paloshe
	<i>Name of Deputy Returning Officer</i> Makarios Tuukuo
Ndhiwa	<i>Name of Returning Officer</i> Nandokha Maurice
	<i>Name of Deputy Returning Officer</i> Omolo Onyango Joab

Dated 25th July, 2012.

A. I. HASSAN,
*Chairperson,
Independent Electoral and Boundaries Commission,*

GAZETTE NOTICE No. 10606

THE LOCAL GOVERNMENT ACT

(Cap. 256)

THE LOCAL GOVERNMENT ELECTIONS RULES

DECLARATION OF CASUAL VACANCIES

IN EXERCISE of the powers conferred by section 2 (1) (a), 3 (2) of the Sixth Schedule to the Constitution of Kenya, section 112 (2) of the Elections Act, 2011 and the Local Government Act, notice is given that the fifteen (15) electoral areas (civic wards) specified in the third column of the Schedule hereunder and falling within the local authorities and constituencies specified in the second and fourth columns respectively have been declared vacant.

SCHEDULE

<i>Constituency Code</i>	<i>Local Authority</i>	<i>Ward</i>	<i>Constituency</i>
190	Township of Oyugis	Wire Hill/Migwa	Kasipul Kabondo
190	County Council of Rachuonyo	Wang Chieng	Kasipul Kabondo
017	Town Council of Mariakani	Kaliang'ombe	Kaloleni
101	County Council of Kiambu	Ikinu	Githunguri
070	Municipal Council of Machakos	Mumbuni North	Machakos Town
005	City of Nairobi	Waithaka	Dagoretti
041	County of Moyale	Nana	Moyale
117	Eldoret Municipality	Market	Eldoret North

<i>Constituency Code</i>	<i>Local Authority</i>	<i>Ward</i>	<i>Constituency</i>
114	Transnzoia County Council	Kapkoi	Kwanza
114	Transnzoia County Council	Kaptega	Kwanza
159	County of Kakamega	Bukura	Lurambi
090	County of Kirinyaga	Mutira	Kirinyaga Central
062	Kitui Municipal Council	Kalimani/Matinyani/Mutulu	Kitui West
210	Nyamira County Council	Nyaramba/Nyangoge	North Mugirango/Borabu
197	Migori County Council	East Kadem	Nyatike

Dated the 25th July, 2012.

A. I. HASSAN,
Chairperson
Independent Electoral and Boundaries Commission

GAZETTE NOTICE No. 10606

THE LOCAL GOVERNMENT ACT

(Cap. 265)

THE LOCAL GOVERNMENT ELECTIONS RULES

APPOINTMENT OF RETURNING OFFICERS

IN EXERCISE of the powers conferred by section 2 (1) (a), 3 (2) of the Sixth Schedule to the Constitution of Kenya, section 112 (2) of the Elections Act, 2011 and rule 8 of the Local Government Elections Rules, the Independent Electoral and Boundaries Commission appoints the persons named in the first and second columns of the Schedule to be the returning officers and deputy returning officers for the electoral areas (civic wards) specified in the third column and which are within the relevant constituencies specified in the fifth column of the said Schedule.

The appointment shall be for conduct of the by elections to be held on 17th September, 2012

SCHEDULE

<i>Returning Officer</i>	<i>Deputy Returning Officer</i>	<i>Ward</i>	<i>Local Authority</i>	<i>Constituency</i>
Jackson Mariach Limaris	Collins Odhiambo Opalla	Wire Hill /Migwa	Township of Oyugis	Kasipul Kabondo
Jackson Mariach Limaris	Collins Odhiambo Opalla	Wang Chieng	County Council of Rachuonyo	Kasipul Kabondo
Mwawasi John K	Rose Kombe	Kaliang'ombe	Town Council of Mariakani	Kaloleni
Anthony M. Njiraini	Susan Wanjiru Gladys	Ikinu	County Council of Kiambu	Githunguri
Justus Mwanza Nzomo	George Ndoto Kileelo	Mumbuni North	Municipal Council of Machakos	Machakos Town
Kuria J Mbugua	Miriam Gatwiri Mbae	Waithaka	City of Nairobi	Dagoretti
Katelo I. Guyo	Guyo Abdi Adan	Nana	County of Moyale	Moyale
Mildred Wachiye	Caroline Chebos	Market	Eldoret Municipality	Eldoret North
Joyce N. Wamalwa	Martin Bunyasi	Kapkoi	Transnzoia County Council	Kwanza
Joyce N. Wamalwa	Martin Bunyasi	Kaptega	Transnzoia County Council	Kwanza
Gideon Balang	Judith Ayasi	Bukura	County of Kakamega	Lurambi
Mwai Teresia Wanjiru	Michael Marvin Murimi	Mutira	County of Kirinyaga	Kirinyaga Central
Moses Daula	Isaac Alila Ambaso	East Kadem	Migori County Council	Nyatike
Justus Naliakho Simali	Isaiah Nyaega Misonge	Nyaramba/Nyangoge	Nyamira County Council	North Mugirango/Borabu
Kitonga Kiema Hendeng'u	Paul Ndoi Mwithi	Kalimani/Matinyani/Mutulu	Municipal Council of Kitui	Kitui West

Dated the 25th July, 2012.

A. I. HASSAN,
Chairperson.
Independent Electoral and Boundaries Commission.